

JUDGMENT SHEET
PESHAWAR HIGH COURT, PESHAWAR
(JUDICIAL DEPARTMENT)

Criminal Appeal No.345-P/2026

Qamar Zaman S.I and others (Appellants)
Vs
The State (Respondent).

For Petitioner(s):	Appellants with Mr. Mohammad Yousaf Orakzai, Advocates.
For respondents (s)	Mr. Taskeen Uddin Khattak, AAG.
Research Assistant by:	Riaz Aslam Daavi, SRO PHCP.
Date of hearing:	18.06.2026

JUDGMENT

IJAZ ANWAR, J. The appellants, namely Qamar Zaman S.I, Said Jamal Shah S.I, Alamgir ASI and Alamgir constable No. 2275 are serving police officials who were prosecuted and subsequently convicted by the learned Additional Sessions Judge-IX, Peshawar, vide impugned judgment dated 26.03.2026 under Section 174 of Pakistan Penal Code, 1860 (“**PPC**”) for alleged non-attendance in obedience to notices issued during the trial of case titled *State versus Abdul Sattar etc.*, arising out of FIR No.26 dated 04.01.2024 registered at Police Station Bhana Mari, Peshawar. The learned Trial Court, through the impugned judgment dated 26.03.2026, sentenced the appellants to undergo simple imprisonment for one month each, along with a fine of Rs.1,000/-

each, and in default of payment thereof, to further undergo simple imprisonment for seven days.

2. Learned counsel for the appellants submitted that the learned Trial Court failed to appreciate that the essential ingredients of Section 174 PPC were not attracted, as there was no deliberate, intentional or willful disobedience on the part of the appellants. Mere absence on certain dates, particularly when the proceedings had otherwise remained dormant due to non-appearance of the complainant and defense-related delays, could not constitute an offence under Section 174 PPC. It was further submitted that the learned Trial Court acted with material irregularity by convicting the appellants in absentia without affording them an adequate opportunity to explain their position or place relevant material on record. According to learned counsel, the appellants were condemned unheard, in violation of the principles of natural justice and the right to fair trial guaranteed under Article 10-A of the Constitution of the Islamic Republic of Pakistan, 1973. Learned counsel also contended that the appellants, being government officials performing multifarious official duties, were dependent upon official channels and departmental communications for their appearance before the Court. They had no mala fide intention to disobey any court

order, nor was any independent evidence produced to establish *mens rea* or deliberate defiance. A conviction under Section 174 PPC, being penal in nature, could not be sustained merely on assumptions or adverse inferences. Much emphasis was also placed on the jurisdiction of the Trial Court to try an offence under Section 174 PPC in view of the bar contained in Section 195 of the Code of Criminal Procedure, 1898 (“**CrPC**”).

3. Learned AAG for the State argued in rebuttal that the non-appearance of prosecution witnesses causes delay in the disposal of cases and is one of the root causes that must be dealt with firmly. He contended that non-appearance before the Court, despite proper knowledge of the proceedings, amounts to willful and deliberate disobedience and constitutes contempt of Court. Since such offences are documentary in nature, only summary procedure is required to be adopted, and there is no need to record evidence. He further submitted that the appellants themselves waived their right of defense and hearing by failing to appear before the Trial Court, and they cannot now shift the responsibility to the Court. According to him, waiver of the right of hearing through deliberate non-appearance, despite knowledge of the proceedings, disentitles them from claiming such right at the appellate stage. He argued that such tactics and deliberate

design to avoid appearance are aimed at crippling the Court and obstructing its proceedings, which is impermissible under the law, as the Court cannot be halted or held hostage. Therefore, he maintained that the impugned order is based on facts and sound reasoning, and prayed that the instant appeal be dismissed.

4. Arguments heard and record perused.

5. The following central questions arise for determination by this Court in the instant appeal:

- 1. Whether, in view of the bar contained in Section 195 CrPC with respect to Section 174 PPC, the learned Trial Court had jurisdiction to try the offence under Section 174 PPC?**
- 2. What is the correct procedure, under the prevailing legal regime, for trying an offence under Section 174 PPC?**

6. As to question No 1, admittedly, PPC defines what conduct is an offence and what punishment may be awarded; Cr.P.C explains how that offence is to be reported, investigated, prosecuted, tried, and decided by the court. The PPC and the Cr.P.C are not isolated statutes; rather, they operate as complementary components of the same criminal justice framework. The PPC embodies the substantive criminal law by defining offences and prescribing punishments, whereas the Cr.P.C provides the procedural machinery through which such offences are investigated, prosecuted, tried and adjudicated. Thus,

while the PPC creates criminal liability, the Cr.P.C regulates the lawful manner in which such liability is to be enforced. Any prosecution, therefore, must satisfy both requirements: the act complained of must constitute an offence under the PPC, and the proceedings must be conducted strictly in accordance with the procedure prescribed by the Cr.P.C. The two statutes work hand in hand, and failure to observe the procedural safeguards of the Cr.P.C may vitiate even a charge otherwise falling within the PPC.

7. In the backdrop of the foregoing discussion, the instant matter is to be examined. Section 5 Cr.P.C provides that all offences under the PPC shall be investigated, inquired into, tried and otherwise dealt with in accordance with the provisions of the Cr.P.C, whereas offences under special laws shall also follow the same procedure unless such special law provides otherwise. Since Section 174 PPC is an offence under the PPC, the procedure for its trial and all ancillary matters shall, therefore, be governed by the Cr.P.C, the relevant legal framework whereof is required to be examined. Section 6 Cr.P.C recognizes two ordinary classes of criminal courts, namely, the Courts of Session and the Courts of Magistrates, besides the High Court and courts constituted under any special law. Section 28 Cr.P.C further provides that an offence under the PPC may be tried by the High Court, the Court of

Session, or by any other Court shown in the eighth column of the Second Schedule to be competent to try such offence. Thus, while the High Court and the Court of Session are generally competent under Section 28 Cr.P.C, the competence of any other Court is to be determined with reference to the eighth column of the Second Schedule. This general scheme, however, is subject to the conditions and restrictions contained in the Code. For instance, Section 190 Cr.P.C empowers a Magistrate of the First Class (“**Magistrate**”), or any other specially empowered Magistrate, to take cognizance of an offence upon a complaint, a police report, information received from any person, or upon his own knowledge or suspicion. Where the offence is exclusively triable by the Court of Session, the Magistrate is required to send the case to that Court for trial without recording evidence. Thus, Section 190 Cr.P.C indicates that cognizance is ordinarily taken by the Magistrate, and where the offence is triable by the Court of Session, the matter is transmitted to that Court; for such determination, the eighth column of the Second Schedule serves as the guiding criterion. Correspondingly, Section 193 Cr.P.C provides that a Court of Session cannot take cognizance of an offence as a Court of original jurisdiction unless the case has been sent to it under Section 190(2) Cr.P.C, except where the Code or

any other law expressly provides otherwise. Therefore, the legal framework emerging from Sections 190 and 193 Cr.P.C is that, although general power is conferred upon the High Court and the Court of Session to try all offences under the PPC, the jurisdiction of the Court of Session is conditional. A Court of Session cannot directly take cognizance as a Court of original jurisdiction unless the case has first been taken cognizance of by a Magistrate and, where the offence is not triable by such Magistrate according to the eighth column of the Second Schedule to the Cr.P.C, transmitted to the Court of Session for trial. This constitutes the first statutory limitation on the original jurisdiction of the Court of Session; however, such limitation is not absolute and remains subject to exceptions provided either under the Cr.P.C or under any other law for the time being in force.

8. The most significant limitation upon the taking of cognizance by a trial Court, as argued by learned counsel for the appellants, is contained in Section 195 Cr.P.C, particularly with reference to offences under Section 174 PPC. The relevant portions of Section 195 Cr.P.C are reproduced hereunder for ease of understanding:

195. (1) No Court shall take cognizance_
 (a) Prosecution for contempt of lawful authority of public servants.
 of any offence punishable under **sections 172 to 187** of the Pakistan

Penal Code (XLV of 1860), except on the complaint in writing of the public servant concerned, or of some other public servant to whom he is subordinate;

A bare reading of Section 195(1)(a) Cr.P.C makes it clear that offences punishable under Sections 172 to 187 PPC, including Section 174 PPC, can only be taken cognizance of upon a written complaint of the concerned public servant or of a public servant to whom he is subordinate. Indeed, non-appearance of a witness despite lawful summons may amount to contempt of Court and obstruction in the administration of justice, as it hampers the prosecution by preventing the recording of evidence, and may also attract Section 186 PPC. However, both offences fall within the domain of Section 195(1)(a) Cr.P.C. Therefore, cognizance thereof can only be taken upon a complaint by the concerned Court/public servant, and the Trial Court cannot, on its own, proceed to try such offences without following the mandate of Section 195 Cr.P.C. Although the bar contained in Section 195 Cr.P.C has been relaxed in respect of certain offences and made subject to the procedure prescribed under Section 476 Cr.P.C, the latter provision reads as follows:

476. Procedure in cases mentioned in section 195. (1) When any offence referred to in section 195, sub-section (1), clause (b) or clause (c), has been committed in, or in relation to, a proceeding in any Civil, Revenue or Criminal Court, the Court may take cognizance of the offence and try the same in accordance with the procedure prescribed for summary trials in Chapter XXII.

A bare reading of Section 476(1) Cr.P.C makes it clear that the procedure provided therein applies only to offences referred to in Section 195(1)(b) and Section 195(1)(c) Cr.P.C, when committed in or in relation to proceedings before any Civil, Revenue or Criminal Court. In such cases, the concerned Court may itself take cognizance and try the offence in accordance with the procedure prescribed for summary trials under Chapter XXII. However, Section 476(1) Cr.P.C does not include offences falling under Section 195(1)(a) Cr.P.C, which covers offences punishable under Sections 172 to 187 PPC, including Section 174 PPC. In other words, the bar contained in Section 195 Cr.P.C stands relaxed only in respect of offences mentioned in clauses (b) and (c), whereas the bar under clause (a) remains intact. The matter is further elucidated by Section 487 Cr.P.C, which is worthy of consideration and is reproduced hereunder for reference:

S. 487. Certain Judges and Magistrates not to try offences referred to in Section 195 when committed before themselves: (1) **Except as provided in Sections 476, 480 and 485,** no Judge of a Criminal Court or Magistrate, other than a Judge of a High Court, shall try any person for any offence referred to in Section 195, when such offence is committed before himself or in contempt of his authority, or is brought under his notice, as such Judge or Magistrate in the course of a judicial proceeding.

A bare reading of the above-referred provision clarifies that, except as provided in Sections 476, 480 and 485 Cr.P.C, no Judge of a Criminal Court or Magistrate, other than a Judge of the

High Court, can try any person for an offence referred to in Section 195 Cr.P.C when such offence is committed before him, in contempt of his authority, or comes to his notice during judicial proceedings. Section 476 Cr.P.C is one of the exceptions to this rule; however, it applies only to offences falling under clauses (b) and (c) of Section 195(1) Cr.P.C and does not extend to clause (a). Since Section 174 PPC falls within the domain of Section 195(1)(a) Cr.P.C, it is consequently governed by the bar contained in Section 487 Cr.P.C, and the Trial Court before whom the alleged default occurred could not itself try the said offence. Thus, in the presence of the bar contained in Section 195(1)(a) read with section 487 Cr.P.C, the Trial Court had no jurisdiction to directly take cognizance of or try an offence under Section 174 PPC.

9. This view has consistently been affirmed by the superior Courts in numerous judgments. In *Asif Atta v. The State* (**2025 PCr.LJ Lahore 1730**), the Honourable Lahore High Court, while setting aside the conviction under Section 174 PPC, held as follows:

8. All offences in bracket of section 172-188 P.P.C. shall ordinarily be tried under chapter XX of Cr.P.C., on a complaint, if the Judge or Magistrate does not attend offences under sections 175, 178, 179 and 180 of P.P.C. within the purview of procedure prescribed under section 480 of Cr.P.C; but when such offences are committed before himself or in contempt of his lawful authority, or is brought under his notice, as such Judge or Magistrate (except Judge of High Court) in the course of a judicial proceeding, he shall not try it himself.

This command of law is incorporated in section 487 of Cr.P.C. which is as under;

487. Certain Judges and Magistrates not to try offences referred to in Section 195 when committed before themselves: (1) Except as provided in Sections 476, 480 and 485 no Judge of a Criminal Court or Magistrate, other than a Judge of a High Court, shall try any person for any offence referred to in Section 195, when such offence is committed before himself or in contempt of his authority, or is brought under his notice, as such Judge or Magistrate in the course of a judicial proceeding.

In the present case learned Additional Sessions Judge has sentenced the appellant under section 174 of P.P.C. for his failure to produce the accused against whom notice was issued on petition for cancellation of his bail. Section 174 falls in category of offences mentioned in section 195, subsection (1), clause (a), therefore, learned Additional Sessions Judge was not authorized to sentence the appellant by himself, rather complaint should have been forwarded to the Magistrate having jurisdiction in the matter, and on receiving such complaint concerned Magistrate is not required to record statement of Judge as mentioned in section 200 of Cr.P.C., rather follow the process contained in sections 200 to 204 Cr.P.C., and provisions relating to trial as the case may be.

The crux of the above-referred judgment is that an offence under Section 174 PPC falls within the ambit of Section 195(1)(a) Cr.P.C. Where such offence is committed before a Judge or Magistrate, or in contempt of his authority during judicial proceedings, the said Judge or Magistrate cannot himself try and punish the offender, in view of the bar contained in Section 487 Cr.P.C. The proper course is for the concerned Judge or Magistrate to file or forward a complaint to the competent Magistrate, who shall then proceed in accordance with Sections 200 to 204 Cr.P.C and thereafter try the case in accordance with law. Thus, the learned Additional Sessions Judge had no jurisdiction to directly sentence the appellant under Section 174 PPC himself. A similar

view has also been taken by this Court in *Amjid Ali IHC v. The State* (**2024 PCr.LJ Peshawar 1803**), wherein this Court held as follows:

“11. It is also not out of context to mention here that according to clauses (b) and (c) of subsection (1) of section 195 Cr.P.C. only the offences against public justice and those relating to documents given in evidence are to be prosecuted by the subordinate courts. Needless to mention that other offences of contempt of lawful authority of public servants under sections 172 to 188 P.P.C to be dealt with under the ordinary procedure laid down for the trial of other criminal cases. Thus, a line of distinction has been drawn between the cases of contempt relating to courts and public servants. For trials of the former a special procedure has been envisaged under Chapter XXXV of the Code of Criminal Procedure, however it must be kept into mind that the pre-condition of written complaint by the authority concerned for offences of both types of contempt and perjury is common. Again, it is not to be over emphasized that the subordinate courts are required to adhere to the procedure prescribed in Chapter-XXXV of Code of Criminal Procedure, 1898 which contemplates special procedure in proceedings of offences affecting the administration of justice subject to pre-condition contained in section 195 Cr.P.C. and modus operandi under this chapter is further divided in two categories...”

The crux of the above judgments is that offences falling within clauses (b) and (c) of Section 195(1) Cr.P.C are to be dealt with in accordance with the special procedure provided under Chapter XXXV Cr.P.C, comprising Sections 476 to 487 Cr.P.C, whereas offences falling under clause (a) remain subject to the mandatory condition prescribed in Section 195(1) Cr.P.C. In *Muhammad Amar v. The State* (**1999 MLD 2023 Karachi**), the Sindh High Court has also taken a similar view in the following words:

Keeping in view the facts and circumstances of this case as well as the provisions contained in clause (1)(a) of section 195 and clause (1) of section 476, Cr.P.C. I am of the view that these revisions fall under the exceptional circumstances enumerated hereinabove as the cognizance taken by the learned Sessions Judge, the impugned order and the proceedings under section 174, P.P.C. are all completely without jurisdiction. If she had come to the conclusion that the applicants had committed the alleged offence she should have sent a complaint to a competent Court for disposal according to law. (see also Ghulam Murtaza v. The State 1991 MLD (Lahore) 1759). However, the learned Sessions Judge would be at liberty to take further action in light of what has been stated hereinabove. Subject to these observations, in exercise of the I E inherent powers of this Court, the impugned order is set aside and the revisions stand disposed of accordingly.

In the said case, it has specifically been held that the proper course in respect of an offence under Section 174 PPC is to send a complaint to the competent Court for proceedings in accordance with law. The same procedure has been adopted by this Court in *Tariq Khan, SHO v. The State* (Cr.A. No. 398-P/2025, decided on 28.10.2025), whereby the conviction under Section 174 PPC has been set aside on the strength of the bar contained in Section 195(1)(a) Cr.P.C, and the case has been remanded for trial in accordance with law. More recently, a larger Bench of this Court, in the landmark judgment titled *Asif Ullah v. Government of KPK*,¹ held in the following words:

101. A core requirement is timely trial and disposal, before witness memory fades. Delay in justice is denial of justice. A persistent obstacle to effective justice is the non-attendance of prosecution witnesses, which is one of the biggest causes of delay. Courts may resort to coercive measures including warrant of arrest, proceedings under section 87/88 CrPc, 74 salary attachment, CNIC blocking, or taking action under sections 174 and 186(2)

¹ WP No 5504-P/2025 and 5560-P/2025 decided on 15.01.2026 (2026 PHC 251)

PPC, where absence is deliberate, while video-link recording may be operationalised through the Criminal Justice Coordination Committee to ensure timely evidence. The prosecution must proactively secure the attendance of its witnesses, and while mere non-appearance does not automatically justify acquittal, deliberate avoidance may warrant recourse to coercive measures under section 186(2) PPC against prosecution. **However, a significant impediment persists: under section 195 CrPC, offences falling within sections 172 to 187 PPC cannot be taken cognizance of by trial courts on their own motion and are further excluded from the ambit of section 476 CrPC.** This statutory bar diminishes judicial capacity to enforce compliance where witnesses or public officials obstruct proceedings. To effectively curb such practices and strengthen accountability within the system, the relevant provisions require amendment so that trial courts may directly take cognizance of such offences and ensure meaningful enforcement of summons and judicial orders. Thus, this issue is left to the relevant forum i.e. provincial legislature.

The larger Bench, while taking cognizance of the above-mentioned legal position, further made the following recommendations in paragraphs No. 122:

“Such delays may attract penal accountability under sections 166(1), 175, and 186(2) PPC, which penalize disobedience of lawful directions, omission to produce required documents, and obstruction or falsification of investigations. However, section 195 CrPC bars cognizance of these offences, and section 476 CrPC does not currently empower trial courts to proceed. **The Court recommends that sections 166 to 187 PPC be expressly included within the scope of section 476 CrPC, enabling trial courts to take cognizance and ensure effective enforcement of duties.** However, it is again the prerogative of legislature to do legislation, for our duty is to identify the lacunas.”

The larger Bench has specifically issued directions to all Courts in paragraph No. 132, under the heading “Directive for Courts,” which is reproduced hereunder for reference:

65. Every trial Court may take cognizance of offences relating to false evidence, perjury, fabrication of evidence, forgery, or obstruction of justice arise during proceedings by invoking

section 476 CrPC² and try offences defined under Sections 175, 178, 179, 180, 193–196, 199, 200, 205–211, 228, 463, 471, 475, and 476 PPC, **whereas for offences under Sections 172, 173, 174, 176, 177, and 181–187 PPC, a complaint must be filed by the concerned public servant or by the Court under section 195 CrPC.** As to Section 166(2) PPC, the Magistrate may take cognizance under section 190 (1) (C) of CrPC and try the offence as section 166 PPC falls outside the domain of section 195 CrPC.

Finally, the Bench recommended appropriate legislation to the Government in paragraph No. 132, under the heading “Directions and Recommendations for Respondents,” in the following words:

“Section 476 of the CrPC may be amended to include within its scope the offences mentioned in section 195, subsection (1), clause (a) of CrPC. It is further recommended that sections 166(1) and 166(2) of PPC be incorporated into this provision so that proceedings for these offences may also be initiated through the mechanism provided under section 476 CrPC.”

The net ratio of the above-referred judgments of this Court is that, in view of the bar contained in Section 195(1)(a) Cr.P.C, offences falling under Sections 172 to 187 PPC, including Section 174 PPC, cannot be tried directly by the Trial Court itself. It is for this reason that a recommendation has been made to the Government for appropriate amendment in Section 476 Cr.P.C, so as to include within its ambit clause (a) of Section 195(1) Cr.P.C. Such amendment would bring offences under Sections 172 to 187 PPC within the scope of Section 476 Cr.P.C and would enable the

² 2023 SCMR 298, 1994 SCMR 1103, PLD 2003 SC 19, 1992 SCMR 1229, PLD 1985 SC 257, 1983 SCMR 616, 1970 SCMR 10, 2018 PLD Pesh 140, 2014 PLD Pesh 79, PLD 2013 Sindh 194, 2011 YLR 816, 2007 PcrLJ 1669 Kar, 1999 PcrLJ 61 Pesh, PLD 1992 Pesh 179, 1989 PcrLJ 1299 Pesh.

concerned Court to directly try such offences. However, until such amendment is made, the existing legal position, as explained in the above discussion and supported by the cited judgments, remains that the Trial Court has no jurisdiction to itself try an offence under Section 174 PPC due to the bar contained in Section 195(1)(a) Cr.P.C. It is a settled principle of law that where a statute requires a thing to be done in a particular manner, it must be done in that manner and not otherwise. Thus, keeping in view the foregoing reasons, Question No. 1 is answered in the negative.

10. As to Question No. 2, the correct procedure, under the prevailing legal regime, for trying an offence under Section 174 PPC stands clearly explained from the statutory provisions and the judgments referred to above. The public servant or the Court before whom the offence under Section 174 PPC is allegedly committed shall send a written complaint to the competent Judicial Magistrate, who shall thereafter proceed under Sections 200 to 204 Cr.P.C and other applicable provisions of the Code. However, before forwarding such complaint, the concerned Court or public servant must satisfy itself that an order requiring attendance was duly issued, that the summons, warrant or order was properly served, and that despite such service the concerned

person failed to appear. Thereafter, a show-cause notice should be issued. If a satisfactory explanation is furnished, further proceedings may be dropped; however, if no reply is submitted, or the reply is unsatisfactory, or the person still fails to appear despite notice, a complaint may be forwarded to the competent Judicial Magistrate. For such complaint, personal appearance of the concerned public servant or Presiding Officer is not necessary, nor is it necessary for the Magistrate to record his statement, as such appearance and examination are exempted under Section 200(1)(aa) Cr.P.C.³ The complaint itself is sufficient to initiate proceedings. The complaint should be accompanied by the relevant order or orders whereby summons, warrant or direction for attendance was issued, the service reports of the DFC, bailiff or process-server, as the case may be, and a list of witnesses. Such witnesses may include the Court Moharrir or record-keeper, being custodian of the file, to produce the original record if required, and the DFC, bailiff or process-server who effected service, to prove due service before the Court trying the offence under Section 174 PPC. Upon receiving the complaint, the

³ when the complaint is made in writing, nothing herein contained shall be deemed to require the examination of a complainant in any case in which the complaint has been made by a Court or by a public servant acting or purporting to act in the discharge of his official duties;

competent Magistrate may secure the attendance of the accused, obtain surety bonds where required, frame charge, record evidence, provide an opportunity of defense, hear the parties, and thereafter decide the complaint in accordance with law after applying judicial mind.

11. The Trial Court trying the complaint under Section 174 PPC must keep in view the essential ingredients required to constitute an offence under the said provision. For ease of understanding, it would be appropriate to reproduce Section 174 PPC hereunder:

174. Non-attendance in obedience to an order from public servant. Whoever, being legally bound to attend in person or by an agent at a certain place and time in obedience to a summons, notice, order or proclamation proceeding from any public servant legally competent, as such public servant, to issue the same, intentionally omits to attend at that place or time, or departs from the place where he is bound to attend before the time at which it is lawful for him to depart, shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to one thousand five hundred rupees, or with both; or, if the summons, notice, order or proclamation is to attend in person or by agent in a Court of Justice, with simple imprisonment for a term which may extend to six months, or with fine which may extend to three thousand rupees, or with both; or, if the proclamation be under section 87 of the Code of Criminal Procedure, 1898, with imprisonment which may extend to three years, or with fine, or with both.

A bare reading of the above-referred provision shows that, in order to constitute an offence under Section 174 PPC, certain essential ingredients must co-exist. The accused must be legally bound to attend, either in person or through an authorized agent, at a specified place and time pursuant to a summons, notice, order

or proclamation issued by a public servant legally competent to issue the same. It must further be shown that the accused had knowledge of such process and, despite such knowledge, intentionally and willfully omitted to attend or departed before the lawful time, without any justification arising from inadvertence, unavoidable circumstances or bona fide inability. Only upon fulfillment of these requirements can the penal consequences provided under Section 174 PPC be attracted. In the present case, the appellants, being prosecution witnesses, were legally bound to appear before the learned Trial Court for recording of their evidence, and the learned Trial Court was legally competent to summon them for that purpose. Therefore, two questions were required to be determined by the learned Trial Court: firstly, whether the appellants were duly informed of the Court's order requiring their attendance; and secondly, whether they had any lawful justification for their failure to appear. These questions are left for the trial court to determine and thereafter proceed in accordance with the procedure laid down in paragraph No. 10. The answer to Question No. 2 has already been provided in paragraph No. 10 and is disposed of in those terms.

12. Thus, for the foregoing reasons, the instant appeal is allowed. The impugned judgment is set aside and, consequently, the conviction and sentence awarded to the appellants are also set aside. The case is remanded to the learned Trial Court with direction to proceed afresh in accordance with the procedure laid down in this judgment. The Additional Registrar (Judicial) of this Court is directed to circulate this judgment amongst the District Judiciary for guidance and compliance. Until appropriate amendments are made in the light of the recommendations and directions issued by the larger Bench of this Court in *Asif Ullah v. Government of KPK* supra, the procedure laid down herein shall be followed in matters relating to Section 174 PPC.

Announced.

Dated. 18.06.2026

**Senior
Puisne Judge**

((SB) Mr. Justice Ijaz Anwar, Hon'ble Senior Puisne Judge